

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Rehearing Denial

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered August 6, 2026

Blue Ember filed a timely petition for panel rehearing on July 23, 2026. The petition has been circulated to Composite Jurists March, Rowan, and Slate, who constituted the deciding panel. Upon consideration, no member requests rehearing. The petition for panel rehearing is denied.

The denial leaves unchanged the July 9 opinion and judgment. The district court's mitigation JMOL remains affirmed, and its December 15, 2025 amended judgment for \$2,700,000 remains affirmed. No remand is ordered, and the conditional Rule 59 ruling remains dormant and undecided.

This order does not independently reconsider the merits, adopt a new rationale, or decide the possible scope of a damages retrial. It records only the panel's refusal to reopen its counterfactual decision. The exact two-component disposition continues to govern this branch.

The clerk shall serve Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb electronically. Under the applicable Rule 41 sequence, mandate release is scheduled seven days after entry of this denial unless a qualifying branch-specific stay intervenes. The resulting date is August 13, 2026.

Isolation and mandate direction

The rehearing petition and this denial exist only on the docket marked never occurred. They do not establish that Blue Ember sought rehearing in any actual appeal, and they cannot modify the historical wording of the two causation-only Rule 50(a) motions.

The clerk shall retain both required warnings on the order and all derivative materials. No reader may combine this route with the ordinary no-petition route or with a separate mandate-stay alternative. Each path supplies a mutually exclusive procedural sequence within the synthetic corpus.

Unless the Court enters a valid stay order on this route, the mandate shall issue on August 13 and shall transmit only affirmance of mitigation JMOL and affirmance of the \$2,700,000 amended judgment. It shall not decide or activate the conditional new-trial ruling. No other disposition accompanies that transmission.

Entered by direction of the unanimous panel on August 6, 2026. Notice of the scheduled mandate date is administrative and creates no event in a real court. The counterfactual designation must accompany any stored, rendered, or transmitted copy of this denial and all related clerk notices.